

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: JULIA CAMPINS
HEARING DATE: 08/20/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 9:00 AM CASE NUMBER: C23-02709
CASE NAME: MELISSA PALMER VS. DIGGER'S DINER CONCORD, INC.
*FURTHER CASE MANAGEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

If either party challenges the tentative ruling, the CMC will proceed. If neither party challenges the tentative ruling, the CMC is continued to November 17, 2026, at 8:30 am in Department 10.

2. 9:00 AM CASE NUMBER: C24-00664
CASE NAME: COUNG CHAU VS. RONALD FONG
*HEARING ON MOTION IN RE: LEAVE TO FILE THIRD AM. COMPLAINT
FILED BY: CHAU, COUNG VI
TENTATIVE RULING:

Before the Court is Plaintiff and Cross-Defendant Cuong Vi Chau and Bill Truong (collectively,

“Plaintiffs”)’s motion for leave to file the Third Amended Complaint. The Motion is opposed by Defendants and Cross-Complainants Ronald A. Fong and Tyler Fong individually and dba Next Level Motors, Inc. (collectively, “Defendants”).

Plaintiffs seek to amend their complaint to provide greater factual detail concerning the underlying transactions alleged in the operative Second Amended Complaint. For each Plaintiff, the proposed TAC pleads new causes of action and new remedies arising from those additional alleged facts.

For the following reasons, the motion is **granted**.

Plaintiffs are ordered to separately file the Second Amended Complaint with the Court by August 24, 2026.

Brief Factual and Procedural Background

Plaintiffs filed their original complaint in this action for fraud, breach of oral contract, and common counts on March 13, 2024. The original complaint was amended and a First Amended Complaint filed on Oct. 10, 2024, and it was later further amended via a Second Amended Complaint on Dec. 12, 2025.

The gravamen of the dispute is an alleged agreement to purchase, repair, and sell damaged high-end vehicles. There are three core transactions alleged regarding two Tesla Model Y vehicles and a Porsche Panamera. The proposed TAC adds additional allegations around those transactions. It also adds new causes of action for each Plaintiff for (i) fraudulent misrepresentation, (ii) fraudulent concealment, and (iii) violations of Business and Professions Code §§ 17200 *et seq.* and their related remedies.

Defendants filed a motion for summary judgment directed toward the Second Amended Complaint on June 5, 2026.

Plaintiffs moved *ex parte* to continue the hearing on Defendants’ Motion for Summary Judgment, vacate and continue trial and related dates, and to extend discovery on July 24, 2026. On July 28, 2026 the Court granted the application, continuing the hearing on Defendants’ motion to January 7, 2027 and the trial date from September 28, 2026 to May 3, 2027. Pursuant to that order, the Court also extended fact discovery so that the parties could complete fact discovery through the statutory cutoff calculated from the new trial date.

Legal Standard

The court may, in its discretion, in the furtherance of justice “allow, upon any terms as may be just, an amendment to any pleading or proceeding[.]” (Code Civ. Proc., § 473(a)(1); see also Code Civ. Proc., §576 [stating that “[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading”].) The court’s discretion should be “exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047.) It is “an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment,” even if the amendment was the result of an unreasonably delayed filing. (*Id.* at 1048.)

Under California Rules of Court Rule 3.1324(a), a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted

allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

Under California Rule of Court Rule 3.1324(b), a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier.

Analysis

Undue Delay

Defendants argue that “Plaintiff offers no satisfactory explanation for waiting until after the MSJ was filed to seek leave to amend.” (Opp. at 18:5-6.)

“‘[E]ven if a good amendment is proposed in proper form, unwarranted delay in presenting it may—of itself—be a valid reason for denial.’” (*Record v. Reason* (1999) 73 Cal.App.4th 472, 486 [unwarranted delay in presenting amendment may of itself be valid reason for denial of leave]; see also *Green v. Rancho Santa Margarita Mortgage Co.* (1994) 28 Cal.App.4th 686, 692 [“[t]here is a platoon of authority to the effect that a long unexcused delay is sufficient to uphold a trial judge’s decision to deny the opportunity to amend pleadings, particularly where the new amendment would interject a new issue which requires further discovery”].)

Here, however, the Court cannot conclude that Plaintiff unreasonably delayed in seeking amendment. First, counsel for Plaintiff avers that “[t]he additional facts and allegations pleaded in the proposed TAC were learned and confirmed through Plaintiffs’ further efforts at written discovery, a comprehensive review of Defendants’ document production, and Plaintiffs’ review of materials received from third party discovery, particularly the responses that Plaintiffs received from third party subpoenas to the California DMV and the California Bureau of Automotive repair, which were respectively received on May 12, 2026 and June 1, 2026.” (Moya Decl. at ¶ 8.) The instant motion was filed approximately a month and a half later, on July 13, 2026. The date was advanced *ex parte* to August 20, 2026.

Counsel for Plaintiff also provides considerable detail regarding the contentious discovery process between the parties which played a role in delaying the receipt and review of documents.

On these facts, the Court cannot conclude that Plaintiffs unreasonably delayed in seeking to amend their complaint. This element does not support denial.

Prejudice

Next, Defendants argue that the amendment will unfairly prejudice them in several respects.

Prejudice in this context is where amendment would result in, among other things, necessitating a continuance to allow the defendant to depose new witnesses, a delay of trial, along with a loss of critical evidence, added costs of preparation, or increased burden of discovery. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488; see also *P & D Consultants, Inc. v. City of Carlsbad* (2010) 190 Cal.App.4th 1332, 1345.)

Here, the trial date has already been continued eight months from September 28, 2026 to May 3, 2027. Consequently, amendment of the underlying complaint itself will not delay the trial as it has already been continued.

There is no claim that amendment will cause loss of evidence or witnesses; instead, Defendants argue, without authority, that “Plaintiffs should not be permitted to avoid adjudication of the claims they actually pleaded by changing the pleading after Defendants have already incurred the burden and expense of preparing a dispositive motion.” (Opp. at 14:12-13.) All three of the cases cited by Defendants in support of their argument that the Court should deny the motion because it would moot their pending summary judgment hearing are distinguishable. (Opp. at 14:2-8 [citing *Applegate v. Carrington Foreclosure Services, LLC* (2025) 112 Cal.App.5th 356, 368-369 (*Applegate*); *Melican v. Regents of University of California* (2007) 151 Cal.App.4th 168, 176 (*Melican*); and *Falcon v. Long Beach Genetics, Inc.* (2014) 224 Cal.App.4th 1263, 1280 (*Falcon*).].)

In all three cases, the request to amend the underlying pleading was made orally at the hearing on the motion for summary judgment that would have been rendered moot. As the court in *Applegate* noted, “it would have been within the trial court’s discretion to deny the request for leave to amend either because [plaintiff] failed to proffer an amendment that stated a cause of action or because the circumstances demonstrated unexplained delay, lack of diligence, and unfairness to defendants.” (*Applegate, supra*, 112 Cal.App.5th at p.369.) Here, Plaintiffs filed a regularly noticed motion that complies with California Rule of Court 3.1324 subsections (a) and (b). And, as the Court described above, the facts do not support a conclusion that Plaintiffs unduly delayed in moving to amend.

Finally, Defendants’ additional arguments regarding futility and inflammatory accusations are directed at the merits of the proposed amendment and are not grounds to deny amendment.

Because the Court concludes that Plaintiff has not been dilatory, and any prejudice to the Defendants is ameliorated by the new trial date and extended deadlines based on that new trial date, the motion for leave to amend is **granted**.

3. 9:00 AM CASE NUMBER: C24-02090

CASE NAME: LEAH FREEMAN VS. DAVID HUNTER

***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

It appears from the documents before the Court that (a) Christopher Brown is now represented; (b) Cross-Complainants will be dismissing the case against him; and (c) conversations about resolution are ongoing. The Court continues this Case Management Conference to September 15, 2026, at 8:30 am. No appearances required for August 20, 2026.

Law & Motion

4. 9:00 AM CASE NUMBER: C23-02568

CASE NAME: TYLER LIND VS. SEGWAY INC.

HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO EDAN BENMELECH FOR DEF SEGWAY INC.

FILED BY: SEGWAY INC.

TENTATIVE RULING:

After review of the papers, the Court **grants** the Application. The Court will sign the proposed order provided.

5. 9:00 AM CASE NUMBER: C23-02709
CASE NAME: MELISSA PALMER VS. DIGGER'S DINER CONCORD, INC.
*HEARING ON MOTION IN RE: QUASH SUMMONS
FILED BY: DIGGER'S DINER CONCORD, INC.
TENTATIVE RULING:

Before the Court is Specially appearing Defendant Digger's Diner Concord, Inc.'s Motion to Quash Service of Summons.

For the following reasons, Defendant's Motion to Quash is **denied**.

Initial Considerations

"Except in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages." (Cal. R. Ct. 3.1113(d).) Plaintiff's opposition memorandum is 18 pages, excluding the caption page, table of contents, table of authorities, and proof of service. If a party believes it needs additional pages they need file a request with the court which "must state reasons why the argument cannot be made within the stated limit." (*Id.* at (e).) A memorandum that exceeds the page limit may be rejected by the Court. (Cal. R. Ct. 3.1113 (g); 3.1300 (d); *Bozzi v. Nordstrom* (2010) 186 Cal.App.4th 755, 765.)

In addition, Plaintiff's counsel filed a declaration in support of the Opposition which attaches five exhibits (A-E). "[E]lectronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit." (Cal. R. Ct. 3.1110 (f)(4) emphasis added.) The declaration fails to include any bookmarks, much less ones with the required information.

Plaintiff's counsel is reminded to comply with the Rules of Court going forward.

Tables of Contents and Authorities

Defendant's counsel points out several 'defects' in the tables provided by Plaintiff – arguing that the Court should strike the Opposition for these typos which appear to misstate the page on which certain arguments and cases appear. Each appears to be one-page off from the actual location. Highlighting these minor defects and seeking to have the Opposition stricken thereupon is absurd. The Court will not strike the Opposition based on the tables included therein.

Timeliness of Opposition

Defendant argues that Plaintiff's opposition was not timely filed and served. It notes that under Code of Civil Procedure section 1010.6, "electronic service of documents adds two days to the deadline for a responsive action." Defendant then argues: "Since the Plaintiff's Opposition was served by electronic service the other party should have served the Opposition at least 11 court days before the hearing to ensure that the person receives the papers on-time. (9 court days, plus 2 days for electronic service)" (Reply 3:16-18.) Apparently, Defendant is relying on Code of Civil Procedure

section 1005 to establish the nine-court day deadline to file the opposition – even though that section is not cited.

Per the terms of section 1005, which governs the timing of filing and serving motion papers: “All papers opposing a motion so noticed shall be filed with the court and a copy served on each party at least nine court days... before the hearing.” (Code Civ. Proc. 1005(b).) That section goes on to explicitly state that “all papers opposing a motion ... shall be served by personal delivery, ... or other means consistent with Sections ... 1013, and reasonably calculated to ensure delivery to the other party or parties not later than the close of the next business day after the time the opposing papers ... are filed.” (Code Civ. Proc. § 1005(c).) Section 1013 allows for electronic service. Electronic service is ‘reasonably calculated to ensure delivery’ almost instantaneously – and most definitely ‘not later than the close of the next business day’ after the opposition papers were filed.

Defendant’s motion was filed on June 30, 2026, with an original hearing date of December 3, 2026. On July 15, 2026, the Court issued a minute order following a CMC which advanced the hearing to August 20, 2026. Thus, any opposition was due on or before August 7. Plaintiff filed the declaration of diligence on August 4 and the rest of the opposition papers on August 7. As such, Plaintiff’s opposition papers were timely filed.

Even if the papers are considered late, “a trial court has broad discretion to accept or reject late-filed papers.” (*Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262.) The Court would exercise such discretion in this instance.

Factual and Procedural Background

The procedural background of this case and attempts at service are more complicated than any case needs to be. The Court will not belabor the history of hearings in this matter and move directly to matters pertinent to the instant motion.

On June 3, 2026, Plaintiff filed an Amended Proof of Service of Summons (“PoS”) indicating that Defendant Digger’s Diner Concord, Inc. (“Digger’s”) was served via substitute service on May 21, 2026. The PoS indicates that the papers were delivered to “Nikki Doe” (refused to give last name), identified as a manager of the establishment – i.e. Digger’s. A Proof of Mailing was also attached indicating that the papers were mailed to Digger’s, c/o Nicole Mikkelson, Agent for Service on May 21, 2026.

Thereafter, on June 30, Digger’s filed the instant motion to quash.

Legal Standard

California Code Civ. Proc., § 418.10 provides in relevant part that “A defendant . . . may serve and file a notice of motion . . . [t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10(a).) Regardless of whether there are other grounds for personal jurisdiction, due process requires that an adjudication be preceded by proper notice. (*Mullane v. Central Hanover Bank & Trust Co.* (1950) 339 U.S. 306, 313.) “To establish personal jurisdiction, compliance with statutory procedures for service of process is essential...” (*Kremerman v. White* (2021) 71 Cal.App.5th 358, 370.)

When a defendant brings a motion to quash service of summons due to defective service, the burden shifts to the plaintiff to prove facts that give the court jurisdiction. (*Coulston v. Cooper* (1966) 245 Cal.App.2d 866, 868.) Code Civ. Proc., § 418.10(d) further states that “no motion under this section, or under Section 473 or 473.5 when joined with a motion under this section . . . shall be deemed a general appearance by the defendant.” (Code Civ. Proc., § 418.10(d).)

Statutory Requirements of Service

“[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction.” (*Renoir v. Redstar Corp.* (2004) 123 Cal.App.4th 1145, 1152 quoting *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.) “‘Process’ is ‘a writ or summons issued in the course of judicial proceedings.’” (*Ibid.* citations omitted.) “Unless otherwise provided by statute, notice of a claim against a defendant in a civil action is given by service of a summons on the person.” (*Ibid.*) A court “in which an action is pending has jurisdiction over a party from the time summons is served on him....” (Cal. Code Civ. Proc. § 410.50 (a).) “Thus, in the ordinary civil action, unless there be other statutory authority, the issuance and service of summons is a prerequisite to acquisition of jurisdiction.” (*Pousson v. Superior Court of San Diego County* (1958) 165 Cal.App.2d 750, 752.)

The Civil Code prescribes four manners of service: (1) personal service, (2) ‘substitute service’ – wherein the papers are left with someone else coupled with mailing, (3) service by mail coupled with an acknowledgement of receipt, and (4) service by publication. (See Cal. Civ. Code § 415.10 et seq.) The issue briefed by the parties relates to substitute service.

Analysis

Defendant argues that Plaintiff has the burden to demonstrate the validity of service, citing *Bolkiah v. Superior Court* (1999) 74 Cal.App.4th 984, 991. There, the court noted that “once a defendant files a motion to quash the burden is on the plaintiff to prove by a preponderance of the evidence the validity of the service and the court’s jurisdiction over the defendant.” (*Ibid.*)

Plaintiff’s PoS indicates that the documents were served by a registered California process server. (Gill Decl. Ex. D.) It indicates that the documents were left with Nikki Doe, Manager of Diggy’s at 1895 Farm Bureau Road, Unit B, in Concord, California. (*Ibid.*) The process server’s declaration of diligence explains that when he entered the business he asked for Nicole Mikkelson (who is the agent for service of process). (Gill Decl. Ex. E.) She asked if he was a process server and when he said he was she stated: “I’m the manager and I’m authorized to accept it.” (*Ibid.*) While she refused to indicate if she was named “Nicole Mikkelson,” she did confirm her name was Nikki – a shortened version of Nicole. She did accept the documents. The notice of mailing attached to the PoS indicates that the documents were mailed that same date.

Evidence Code section 647 provides “that service by a registered process server raises a presumption that service was proper.” (*City of Riverside v. Horspool* (2014) 223 Cal.App.4th 670, 680.) Once the proof of service of a registered process server is filed, the statutory presumption applies and “defendant [is] thus required to produce evidence that [s]he was not served.” (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 390.

On Reply, Defendant submits the declaration of Nicole Starnes which contradicts much of what was

included in the declaration of diligence. She indicates that she is an employee of Digger's and was working on the day the documents were dropped off. However, she notes that the process server did not identify himself and did not tell her what the documents he had were. She also states that she did not tell him she was the manager and was authorized to accept service. She does acknowledge that he handed her the paperwork.

Defendant argues that substitute service was improper because there is no declaration of diligence showing that Plaintiff attempted personal service on Digger's prior to performing substitute service. This argument fails as the diligence requirement only applies to efforts to serve an individual defendant – not a corporate defendant. (Compare Code Civ. Proc. § 415.20(a) and (b).) As the Judicial Council Comment indicates, if the defendant is a corporate entity:

“...service may be made *in the first instance*, in lieu of delivery of process to a specified officer or employee of such entity personally, by leaving the papers in his office. ...” (emphasis added.)

Conversely, the Comment notes that if the defendant is a natural person, service may be made by substitute service “when such papers cannot be personally delivered with reasonable diligence. Personal delivery must be attempted in all cases where this alternative method of service is used.”

Defendant also argues that the service is defective because the process server that served the papers was different from the one that mailed the papers. Defendant cites no law to support this argument. It has been long recognized that “[c]ontentions supported neither by argument nor by citation of authority are deemed to be without foundation, and to have been abandoned.” (*In re Estate of Randall* (1924) 194 Cal. 725, 728-29.) Section 415.20, related to substitute service, does not indicate that the same person that serves the papers must also be the one that mails them.

As for the actual substitute service, a “summons and complaint may be served by leaving a copy of the summons and complaint during usual office hours in the person’s office or ... with the person who is apparently in charge thereof, and by thereafter mailing a copy of the summons and complaint by first-class mail, a postage prepaid to the person to be served at the place where a copy of the summons and complaint were left.” (Code Civ. Proc. § 415.20(a).)

Here, the PoS and Declaration of Diligence indicate that the summons and complaint (and related papers) were left with “Nicki” at Digger’s business address – 1895 Farm Bureau Road, Unit B, in Concord, California. Ms. Starnes’ declaration appears to confirm this in that she indicates that the “gentleman handed me the paperwork.” (Starmer Decl. ¶ 18.) While she states that the ‘gentleman’ did not tell her what the papers were, Defendant fails to cite any authority which indicates that such information is required when serving papers via substitute service at the person’s office.

While Ms. Starnes says she did not tell the process server she as the manager and/or was authorized to accept service, and that she was not authorized to accept service on behalf of Digger’s, the Code does not require that the papers be left with someone “authorized to accept service” for substitute service on a corporation. Instead, as noted above, they only need be left with the “person who is apparently in charge thereof....”

“The evidence purpose of Code of Civil Procedure section 415.20 is to permit service to be completed

upon a good faith attempt at physical service on a responsible person, plus actual notification of the action by mailing the summons and complaint to the appropriate party.” (*Khourie v Sabek* (1990) 220 Cal.App.3d 1009, 1013.) In *Khourie*, the court found substantial compliance with respect to leaving the papers with a ‘responsible person’ when they were left by a locked door after someone inside refused to open the door. (*Id.* at 1013-14.)

The *Khourie* court discussed the case of *Luda v. Memory Magnetics International* (1972) 25 Cal.App.3d 316 wherein the process server entered the defendant’s office and, unable to obtain access to a corporate officer, threw the papers on a coffee table saying, ‘You’re served,’ and later mailing the papers to the defendant. The defendant filed declarations from two people arguing that service was improper. (*Ludka*, 25 Cal.App.3d at 320.)

First, a person that was standing in the reception area when the ‘service’ occurred stated that he told the process server that service was not proper and threw the papers in the waste basket. He was not associated with any defendant. Second, there was a declaration from the president of the defendant – indicating that the person upon whom service was claimed to have been made (the secretary in the office where these events occurred) was employed by a different company located in a different suite (on the same floor). (*Id.* at 320.)

A declaration in opposition indicated that the office where the papers were left was the only accessible area and was a common reception area for the different businesses on that floor. The Court of Appeals “held that the service of process ‘amply complied’ with section 415.20...” (*Khourie*, supra, 220 Cal.App.3d at 1014; *Ludka* 25 Cal.App.3d at 321.)

In both above cases, the courts confirmed that along with leaving the papers, they were also mailed to the proper defendant. Here, the proof of mailing indicates that the summons and complaint were mailed to Digger’s Diner Concord, Inc., a California Corporation c/o Nicole Mikkelson, Agent for Service. Defendant does not dispute this occurred. There is no declaration indicating that the documents were not received. Instead, the focus of the argument is limited to whether leaving the documents at the office/business address with an employee who ‘appeared to be in charge’ – even if she didn’t specifically identify herself as the manager – was sufficient.

“Statutes governing substitute service shall be ‘liberally construed to effectuate service and uphold jurisdiction if actual notice has been received by the defendant...”” (*Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1201.) “[A]ll that is required is *substantial compliance* in order to render the service of summons upon a corporation effective.” (*Cory v. Crocker National Bank* (1981) 123 Cal.App.3d 665, 669.)

Here, the evidence shows that the documents were left with a person that ‘appeared to be in charge’ at the Defendants place of business. Thereafter, the summons and complaint were mailed to Ms. Mikkelson – who is identified as the Agent for Service. A fact which is not disputed by Defendant.

In addition, the “law presumes that items mailed are received...” (*Him v. City and County of San Francisco* (2005) 133 Cal.App.4th 437, 445 citing Evid. Code § 641.) “If, normally, an item properly mailed is received, then evidence of nonreceipt is logically probative of nonmailing...” (*Ibid.*) Defendant does not present any evidence or dispute that Ms. Mikkelson received the documents. As

such, the presumption of receipt applies.

The Court also notes that defense counsel signed a Notice of Acknowledgement of Receipt regarding the First Amended Complaint on January 5, 2024. That Notice of Acknowledgment was filed on January 11, 2024. Service of summons via a Notice of Acknowledgement of Receipt is “deemed complete on the date a written acknowledgment of receipt of summons is executed, if such acknowledgment thereafter is returned to the sender.” (Code Civ. Proc. § 415.30(c).) Defendant was properly served at that time and had actual knowledge of the summons and complaint. It is unclear why Defendant never responded to the FAC, nor why Plaintiff did not move to enter default.

In addition, Plaintiff’s counsel’s declaration indicates Defendant has also responded to written discovery. (Gill Decl. ¶ 5.) If a party makes a general appearance the court obtains jurisdiction over them. A “general appearance need not be ‘a formal, technical step or act...’ [citation]; rather the term may apply to various acts which, under the circumstances, are deemed to confer jurisdiction of the person.” (*Sanchez v. Superior Court* (1988) 203 Cal.App.3d 1391, 1397.) “What is determinative is whether defendant takes a part in the particular action which in some manner recognizes the authority of the court to proceed.” (*Ibid.*)

Courts have noted that responding to discovery “is evidently predicate on the assumption that the court has jurisdiction over the answer party -- otherwise, there would be no need for the answers.” (*Chitwood v. County of Los Angeles* (1971) 14 Cal.App.3d 522, 527-28.) “[T]he only hypothesis upon which answers to [discovery] are prepared, filed and served is that the answering party is subject to the court’s jurisdiction.” (*Id.* at 528.) As such, responding to discovery – as Defendant has done here – has been deemed to be a general appearance imparting jurisdiction over that party. (*Ibid.*) “A general appearance by a party is equivalent to personal service of summons on such party.” (*Hamilton v. Asbestos Corp* (2000) 22 Cal.4th 1127, 1147.)

Summary and Conclusion

Defendant has already accepted service of a complaint in this matter when it accepted service of the FAC via the Notice of Acknowledgment. It has also made a general appearance by responding to discovery. In addition, Plaintiff has substantially complied with the service requirements for substitute service on Defendant. Accordingly, Defendant’s motion to quash is **denied**.

Defendant’s multiple efforts to complain of ineffective service—even after Notice of Acknowledgment, general appearance, and multiple different efforts by Plaintiff to serve—have resulted in the significant expenditure of judicial resources. Defendant’s unmeritorious arguments noted above have also wasted judicial resources. All of this follows prior judicial admonishment to behave more professionally, which Plaintiff has acknowledged and vows to take seriously. The Court expects counsel to engage in good faith in this litigation and will be prepared to take appropriate action if that does not occur.

6. 9:00 AM CASE NUMBER: C24-01854
CASE NAME: REGINALD CANNON VS. MELISSA KATZ
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO JAMES TAFELSKI FOR DEF
FILED BY: HCR MANOR CARE SERVICES, LLC

TENTATIVE RULING:

After review of the papers, the Court **grants** the Application. The Court will sign the proposed order provided.

7. 9:00 AM CASE NUMBER: C24-01854
CASE NAME: REGINALD CANNON VS. MELISSA KATZ
APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE RE THOMAS J. KIRKHAM
FILED BY: HCR MANOR CARE SERVICES, LLC

TENTATIVE RULING:

After review of the papers, the Court **grants** the Application. The Court will sign the proposed order provided.

8. 9:00 AM CASE NUMBER: C25-00245
CASE NAME: SORN MOEUN VS. HIEU BALL, M.D.
GOOD FAITH SETTLEMENT ON BEHALF OF DEFENDANT HIEU T. BALL, MD
FILED BY: BALL, M.D., HIEU T.

TENTATIVE RULING:

Defendant Hieu Ball's motion for a good faith settlement determination is **denied without prejudice**. Defendant may renew his motion with additional information on past and future medical expenses and other information addressing the Court's concerns.

Plaintiffs sued for medical malpractice, alleging that Sorn was injured during spinal surgery. Montha (Sorn's wife) brought a loss of consortium claim. Dr. Ball performed the spinal surgery at San Ramon Regional Medical Center in October 2023.

Ball filed this motion for a good faith settlement determination. Defendant San Ramon Regional Medical Center opposes the motion. San Ramon argues that Plaintiff's potential recovery is \$17 million and that San Ramon could potentially be liable for Ball's actions (although San Ramon disputes this theory).

The party claiming that a settlement is not in good faith under Code of Civil Procedure §877.6 has the burden of proof on that issue. (*Tech-Bilt, Inc. v. Woodward-Cycle & Associates* (1985) 38 Cal.3d 488, 499 ("Tech-Bilt"); *City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261, 1264.) The party asserting that the settlement was not made in good faith must demonstrate that the settlement is "so far out of the ballpark in relation to [the *Tech-Bilt*] factors as to be inconsistent with the equitable objectives of the statute." (*Tech-Bilt, supra*, 38 Cal.3d at 499-500.) However, in order for the Court to make a factual determination that a settlement was made in good faith, the settling party must present sufficient admissible evidence that will allow the Court to evaluate the settlement in terms of the factors contemplated by *Tech-Bilt*. (*City of Grand Terrace, supra*, 192 Cal.App.3d at 1263.)

The criteria for the determination of a good faith settlement were originally set out by the

California Supreme Court in *Tech-Bilt*. *Tech-Bilt* identifies six nonexclusive factors for making a determination of good faith settlement:

- (1) a rough approximation of plaintiffs' total recovery and the settlor's proportionate liability;
- (2) the amount paid in settlement;
- (3) the allocation of settlement proceeds among plaintiffs;
- (4) the recognition that a settlor should pay less in settlement than he would if he were found liable after a trial;
- (5) the financial conditions and insurance limits of settling defendants; and,
- (6) the existence of fraud, collusion, or tortious conduct aimed to injure the interests of nonsettling defendants.

(*Tech-Bilt*, *supra*, 38 Cal.3d at p. 499.)

Ultimately, for the Court to deny the motion, the "settlement figure must not be grossly disproportionate to what a reasonable person, at the time of the settlement, would estimate the settling defendant's liability to be." (*Tech-Bilt*, *supra*, at p. 499.) Trial courts have "broad discretion in determining whether a settlement was entered in good faith and within the *Tech-Bilt* ballpark, and in allocating potential liability and exposure between or among joint tortfeasors." (*Norco Delivery Service, Inc. v. Owens-Corning Fiberglass, Inc.* (1998) 64 Cal.App.4th 955, 962.)

As to the first factor, there is some information on a rough approximation of plaintiff's likely recovery. In Plaintiff's statement of damages, he sought \$20 million in pain, suffering and emotional distress. (Gray dec. ex. B.). However, noneconomic damages may be limited by MICRA to \$470,000. (Civil Code 3333.2(b).)

Plaintiff's statement of damages also included \$1 million in lost earnings and \$5 million in future lost earnings. (Gray dec. ex. B.). However, Plaintiff's interrogatory responses showed a claim for \$1.1 million for lost wages (past and future). (Gray dec. C: Plaintiff's Interrogatory Responses 8.4, 8.7 and 8.8.) This estimate is based upon an assumption that Plaintiff would have worked until 75, which is perhaps optimistic.

Finally, Plaintiff's statement of damages claimed \$1 million in past medical expenses and \$10 million in future medical expenses. (Gray dec. ex. B.) Plaintiff's claimed injuries include spinal cord injury, quadriplegia, respiratory injury and emotional injury. (Gray dec. C: Plaintiff's Interrogatory Responses 6.3.) Plaintiff's responses provided some information on his medical treatment and future treatment, but details on many of the expenses were missing.

Given the significant injuries listed, including quadriplegia, the future medical expenses may be significant. Therefore, the Court estimates past medical at \$1 million and future medical at \$5 million.

Overall, Plaintiff's potential recovery is approximately \$7.5 million.

Here, Ball was Plaintiff's surgeon and if found liable, could be responsible for a significant portion of Plaintiff's damages. On the other hand, Ball has provided a declaration from the medical expert stating that Ball acted within the standard of care. (Spoonamore dec.)

As to the second factor, Ball's counsel provided a declaration stating that Ball settled with Plaintiffs for \$900,000. (Picchi dec. ¶7.)

As to the third factor, the Court does not have information on how the settlement would be split between Plaintiffs who are husband and wife, but that information is not likely to change the Court's analysis here.

As to the fourth factor, the Court is aware that a settlor should pay less in settlement than he would if he were found liable after a trial.

As to the fifth factor, Ball has a \$1 million insurance policy. (Gray dec. ex. E: Response 4.1.) No information has been provided on Ball's financial condition, however, the Court notes that there is no showing that Ball has stopped working or is insolvent. Since Ball did not settle for policy limits and has not shown his financial condition, the Court assumes that Ball had the ability to pay more.

As to the sixth factor, there is no evidence of fraud or collusion.

Having considered all the factors, the Court finds that the settlement is not within the ballpark. There are open questions about the amount of past and future medical Plaintiff will require. Ball's settlement with Plaintiff potentially covers Plaintiff's lost wages and arguably his pain and suffering, but it does not cover past or future medical bills. Given the serious nature of Plaintiff's injury, his medical bills might be significant. While Ball has provided an expert stating that he acted within the standard of care (and thus would not be liable), it is also likely that Plaintiff's have an expert to state otherwise, which means the chance of Ball being found liable at trial is a real possibility. Overall, the Court finds that Ball's settlement is outside the ballpark in this case.

9. 9:00 AM CASE NUMBER: C25-01475
CASE NAME: AUDREY WELSCH VS. HAYDEN FLOREZ
BE RELIEVED AS COUNSEL FOR AUDREY WELSCH
FILED BY:
TENTATIVE RULING:

Parties to appear. Counsel has not provided any information as to the reasons for this Motion. The

Court notes that the parties are actively litigating in Family Court, and Plaintiff is represented there by other counsel.

10. 9:00 AM CASE NUMBER: C25-02859
CASE NAME: CHARY MELINDO VS. ASSIGNMENT AMERICA, LLC

FILED BY: ASSIGNMENT AMERICA, LLC

TENTATIVE RULING:

The Court continues the hearing on this motion to October 1, 2026, at 9:00 a.m.

11. 9:00 AM CASE NUMBER: C25-02859
CASE NAME: CHARY MELINDO VS. ASSIGNMENT AMERICA, LLC
JOHN MUIR HEALTHS STATEMENT OF NON-OPPOSITION & JOINDER RE DEF ASSIGNMENT
AMERICA, LLCs MOTION TO COMPEL ARBITRATION
FILED BY: JOHN MUIR HEALTH

TENTATIVE RULING:

The Court continues the hearing on this motion to October 1, 2026, at 9:00 a.m.

12. 9:00 AM CASE NUMBER: C26-00608
CASE NAME: JESSICA PHILAVONG VS. LUIS GUZMAN
STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT
FILED BY: GUZMAN, LUIS

TENTATIVE RULING:

The Motion to Strike Portions of the Complaint filed by Plaintiffs Jessica Philavong and Kelly Philavong, brought by Defendants Guzman Property LLC and Luis Guzman, is **denied**.

Plaintiffs shall prepare the order and serve notice of entry. Defendants shall have 10 days from service of written notice of entry of the order to answer the complaint.

Background

This is a landlord-tenant habitability case arising from Plaintiffs Jessica Philavong and Kelly Philavong's tenancy at 758 S 40th Street in Richmond (the Property). (See Plfs.' 8/13/26 Complaint, ¶¶ 1, 9.) Defendants are Guzman Property LLC and Luis Guzman who allegedly owned, managed, and controlled the Property. (*Id.*, ¶¶ 2-4, 10,)

Plaintiffs entered into a written lease for the Property on March 17, 2017, for \$1,580.00 per month. (Compl., ¶ 9). Plaintiffs allege that Defendants failed to maintain the property and allowed substantial, longstanding habitability defects to exist, including a broken stove and refrigerator, broken heater, insufficient trash receptacles, water leaks and intrusions, lack of separate utility meters, and general dilapidation. (*Id.*, ¶¶ 11-12, 14, 58.) Despite verbal and written repair requests, and an August 19, 2024 Notice of Violation and/or Notice to Abate issued by City of Richmond Code Enforcement, Defendants failed and refused to remediate the conditions, and instead continued to

collect rent and issued a notice of rent increase. (*Id.*, ¶¶ 15-16.)

Plaintiffs also allege Defendants engaged in a pattern of harassment, intimidation, and retaliation by shutting off utilities to their unit, using derogatory language toward them, invading their privacy by photographing the interior of the apartment (including the children's bedroom), allowing third parties to use their utilities and laundry facilities, forcing them to pay utility costs for all three units. (Compl., ¶¶ 16-18, 113-117.)

Plaintiffs assert the following causes of action against Defendants based on these facts: (1) tortious breach of the implied warranty of habitability, (2) contractual breach of the implied warranty of habitability, (3) breach of contract, (4) breach of quiet enjoyment, (5) private nuisance, (6) premises liability, (7) negligence, (8) violation of California Civil Code Section 1942.4, (9) violation of the Richmond Just Cause for Eviction Ordinance, (10) violation of the Richmond Rent Control Ordinance, (11) violation of the Richmond Tenant Anti-Harassment Ordinance, (12) violation of the UCL, and (13) retaliation. Plaintiffs assert a claim for punitive damages, and treble damages under the Richmond Municipal and Civil Codes.

According to the Notice of Motion, Defendants move to strike punitive damages, treble damages, and certain factual allegations of intentional conduct, harassment, intimidation, and retaliation. The Notice also states (at page 3, lines 25-26) that a "concurrently filed demurrer" has been submitted. However, no demurrer appears in the Register of Actions.

Defendants' opening memorandum of points and authorities addresses only the general sufficiency of the punitive damages allegations under Civil Code section 3294. The opening memorandum does not analyze the prayers for treble damages, the specific factual allegations of harassment and retaliation, or corporate liability under Civil Code section 3294(b). Because Defendants failed to brief these issues in their opening papers and raised them for the first time on reply, the Court does not consider them.

Legal Standard

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (CCP §436.) Pursuant to CCP §436, the Court may strike out "any irrelevant, false, or improper matter inserted in any pleading" and/or "all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (CCP §436.) In ruling on a motion to strike, the allegations in the complaint are considered in context and presumed to be true: "[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Clauson v. Sup.Ct.* (Pedus Services, Inc.) (1998) 67 Cal.App.4th 1253, 1255.)

"In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." (CC §3294(a).)

"'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or

despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (CC §3294(c)(1).) "'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (CC §3294(c)(2).)

"An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (CC §3294(b).)

Meet and Confer

Before filing a motion to strike, the moving party shall meet and confer in person or by telephone with the party who has filed the pleading subject to the motion to strike and file a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 435.5(a).) However, an insufficient meet and confer process is not grounds to grant or deny a motion to strike. (*Id.* § 435.5(a)(4).)

Defendants complied with the meet and confer requirements. (See Declaration of Branden D. Frankel ¶¶ 2-4 and Exh. A.)

Merits

Defendants move to strike punitive damages allegations on the basis that Plaintiffs failed to allege facts amounting to malice or oppression. The Court disagrees.

In a landlord-tenant action, a claim for punitive damages was properly stated where there were "long existing physical conditions of the premises which portend danger for the tenants...[and] respondents knew of those conditions..., had the power to make changes, but failed to take corrective and curative measures." (*Penner v. Falk* (1984) 153 Cal.App.3d 858, 867.) Here, as described more fully above, Plaintiffs alleged the existence of numerous and longstanding defects that the Defendants were aware of and failed to remedy, including a broken stove, refrigerator, heater, water leaks/intrusions, and insufficient trash receptacles. Plaintiffs allege Defendants failed and refused to complete requested repairs and were cited by code enforcement.

In addition, Plaintiffs allege Defendants' intentional retaliation for assertion of their tenant rights, including for demanding repairs and/or making reports to code enforcement based on the defective conditions at the Property, including by, *inter alia*, serving notices of rent increase and eviction, shutting off utilities, and using derogatory language when speaking to and about Plaintiffs. Such facts regarding the alleged retaliation, if proven at trial could sustain a finding of malice. (E.g., *Perkins v. Superior Court* (1981) 117 Cal.App.3d 1, 6-7 [allegation of retaliation "describe[d] defendants' motive for shutting off petitioner's home phone service-a motive which, if proven, would sustain a finding of malice."].)

Defendants argue on reply that "the opposition ignores the chronology of the pleadings facts" in that the March 30, 2023, notice of termination could not be retaliatory because the City Code

Enforcement inspection did not occur until August 19, 2024. (Reply, pp. 6–7.) However, there is no timing defect because the 2023 notice is alleged to have been served in retaliation for habitability complaints and lawful rent withholding (Compl. ¶ 116), which are protected activities independent of any report to code enforcement. Defendants further argue the utility shut-off alleged happened at an "unstated time," the notice terminating tenancy was "never acted upon," and the alleged lack of separate utility meters is merely a "billing arrangement" rather than an unlawful rent increase or despicable conduct. These latter arguments impermissibly rely on matters outside of the pleadings.

Whether Plaintiffs will be able to prove entitlement to punitive damages by clear and convincing evidence remains to be seen. However, the Court finds the allegations of the complaint sufficient to show their entitlement to punitive damages at this stage.

As noted above, Defendants failed to brief their challenges to the treble damages prayers and factual allegations in their opening motion and raised new statutory and corporate liability arguments for the first time in their reply. The Court declines to consider unbriefed issues or arguments raised for the first time on reply.

Disposition

Based on the foregoing, the motion to strike is **denied**.

13. 9:00 AM CASE NUMBER: N26-0541
CASE NAME: CARMEN SAMIERE VS. MATEO MAYNE
PETITION TO CORRECT OR VACATE ARBITRATION AWARD
FILED BY: SAMIERE, CARMEN MARIE
TENTATIVE RULING:

This matter is not on calendar. The matter was decided.